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Eswatini

Compilation of information prepared by the Office of the United Nations High Commissioner for Human Rights

I. Background

1. The present report was prepared pursuant to Human Rights Council resolutions 5/1 and 16/21, taking into consideration the outcome of the previous review.[1] It is a compilation of information contained in relevant United Nations documents, presented in a summarized manner owing to word-limit constraints.

II. Scope of international obligations and cooperation with human rights mechanisms

2. The Committee on the Rights of the Child recommended that Eswatini consider ratifying the International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families, the International Convention for the Protection of All Persons from Enforced Disappearance, the Optional Protocol to the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment and the Optional Protocol to the Convention on the Rights of the Child on a communications procedure.[2]

3. The United Nations Educational, Scientific and Cultural Organization (UNESCO) recommended that Eswatini ratify the Optional Protocol to the International Covenant on Economic, Social and Cultural Rights.[3]

4. The International Labour Organization (ILO) stated that the ratification and effective application of the Protocol of 2014 to the Forced Labour Convention, 1930 (No. 29), would strengthen the efforts of Eswatini to prevent and eliminate different forms of forced labour.[4]

5. The ILO stated that the ratification and effective application of the Labour Inspection (Agriculture) Convention, 1969 (No. 129), would strengthen the capacity of Eswatini to extend labour protection to all workers in rural and agricultural sectors.[5]

III. National human rights framework

1. Constitutional and legislative framework

6. The United Nations country team recommended that Eswatini reform restrictive legislation that limited civil and political rights, including the Sedition and Subversive Activities Act, 1938, and the Suppression of Terrorism Act, 2008.[6]

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7. The United Nations country team recommended that Eswatini finalize and enact the Commission on Human Rights and Public Administration/Integrity Bill.[7]

2. Institutional infrastructure and policy measures

8. The United Nations Development Programme (UNDP) stated that governance challenges persisted in Eswatini, marked by limited opportunities for civic engagement, perceived corruption and allegations of public fund mismanagement. Inadequate access to quality public services and deficits in public trust further hindered progress.[8]

9. The Committee on the Rights of the Child was concerned that resource allocations, particularly in the areas of health, education and social protection, remained low.[9]

10. The same Committee recommended that Eswatini guarantee the independence of the Commission on Human Rights and Public Administration, including with regard to the provision of adequate funding, its mandate and its immunities, so as to ensure full compliance with the principles relating to the status of national institutions for the promotion and protection of human rights (the Paris Principles).[10]

IV. Promotion and protection of human rights

A. Implementation of international human rights obligations, taking into account applicable international humanitarian law

1. Equality and non-discrimination

11. The United Nations country team stated that Eswatini lacked a comprehensive anti-discrimination law covering all protected characteristics, leaving some groups, especially LGBTQI+ persons, exposed to stigma, violence and unequal access to healthcare, education, employment and public services.[11]

12. The Committee on the Rights of the Child remained concerned about the discrimination against certain groups of children, particularly girls, children living in poverty, children with disabilities, children with albinism, orphans, children infected with and affected by HIV/AIDS, refugee children, asylum-seeking children and lesbian, gay, bisexual, transgender and intersex children.[12]

2. Right to life, liberty and security of person, and freedom from torture

13. The same Committee urged Eswatini to prevent and combat killings of and attacks against children with albinism, protect and provide them with psychological support, redress, rehabilitation and legal assistance, and punish those responsible for such crimes. It also urged Eswatini to address the root causes of violence, harassment and discrimination and provide adequate resources to implement the plan to respond to attacks against children with albinism.[13]

14. The same Committee urged Eswatini to prohibit overcrowding and ill-treatment of children in correctional facilities and ensure that children were not confined together with adults, and to amend the Prison Act to prohibit the placing of children in solitary confinement.[14]

15. The same Committee was seriously concerned about reports of ill-treatment, including of girls, solitary confinement and overcrowding in the correctional facilities of Vulamasango School, Malkerns Young Person's Centre and Mawelawela Correctional Centre.[15]

16. The same Committee urged Eswatini to ensure the independent monitoring of places where children were deprived of their liberty and establish child- and gender-sensitive complaint mechanisms regarding ill-treatment of children in custody and detention.[16]

17. The same Committee was seriously concerned that corporal punishment was still lawful in the home, in alternative care settings, in day care, in schools and in penal institutions, and that the Constitution still allowed for "moderate chastisement" of children, which was currently interpreted as permitting such punishment.[17]

3. Human rights and counter-terrorism

18. The United Nations country team stated that the Suppression of Terrorism Act, 2008, was applied in ways that conflated terrorism with political dissent. Advocates for reform and judicial independence had been arrested or designated under counter-terrorism provisions, despite a lack of evidence that met international definitions.[18]

19. The United Nations country team stated that persons charged under that Act had reportedly been subjected to prolonged pretrial detention, restrictions on access to legal counsel and limitations on bail. In some cases, trials had been delayed for extended periods, raising concerns about the right to a fair and timely hearing before an independent and impartial tribunal, in accordance with international human rights standards.[19]

20. The United Nations country team stated that the procedures governing the designation of individuals, organizations or media entities as terrorist entities lacked adequate safeguards. There were insufficient opportunities to effectively challenge such designations before an independent authority, and remedies to seek delisting or redress were limited, contributing to self-censorship and the shrinking of civic space.[20]

21. The United Nations country team recommended that Eswatini review and amend counter-terrorism legislation, including the Suppression of Terrorism Act, 2008, to ensure full compliance with the Constitution of Eswatini and international human rights law.[21]

22. The United Nations country team recommended that Eswatini ensure that counter-terrorism measures were not used to restrict or criminalize peaceful expression, political dissent, civil society activity or the work of journalists and human rights defenders.[22]

4. Administration of justice, including impunity, and the rule of law

23. On 23 January 2023, the United Nations High Commissioner for Human Rights condemned the killing of a leading human rights lawyer from Eswatini, Thulani Maseko, who had been shot dead in his home on 21 January 2023. The High Commissioner called on Eswatini to ensure that a prompt, independent, impartial and effective investigation was held into Mr. Maseko's killing, in accordance with the Constitution of Eswatini and international human rights law, and to hold all those responsible to account in fair trials. The High Commissioner also stated that Eswatini must ensure the safety and security of all people of Eswatini, including human rights defenders, journalists and political activists, and protect civic space.[23]

24. The United Nations country team stated that investigations had stalled in relation to the perpetrators of the 2021–2023 violence in which protestors, including a prominent human rights lawyer, had been killed.[24]

25. On 22 January 2024, a group of United Nations special procedure mandate holders reiterated their call, a year after his assassination, for an effective, impartial and independent investigation into Mr. Maseko's killing, and for concrete measures to protect and ensure the safety of all human rights defenders, civil society actors and lawyers in Eswatini.[25]

26. The ILO Committee of Experts on the Application of Conventions and Recommendations noted that, in June 2024, the ILO Conference Committee on the Application of Standards had urged Eswatini to conduct without delay independent investigations into: (a) alleged instances of intimidation, harassment or violence, including the murder of Mr. Maseko and the persecution of Mbongwa Dlamini, with a view to determining culpability and punishing the perpetrators and instigators of those crimes; and (b) violence and interference by the police in lawful, peaceful and legitimate trade union activities and hold accountable those responsible.[26]

27. The United Nations country team stated that many Emaswati faced barriers in securing legal representation. It recommended that Eswatini expedite the application of the Legal Aid Act, 2025, to enhance legal representation and promote access to justice.[27]

28. The United Nations country team stated that children in conflict with the law faced prolonged detention, harmful environments, disrupted education and a lack of child-sensitive judicial processes and facilities.[28]

29. The Committee on the Rights of the Child urged Eswatini to expeditiously operationalize child justice courts, processes and procedures and designate specialized child justice magistrates and ensure that they and other relevant professionals, such as social workers and probation officers, received appropriate and adequate education and training.[29]

30. The same Committee urged Eswatini to investigate and address ill-treatment of children in the child justice system, ensure that perpetrators were held accountable and child victims were protected and adequately compensated, and eliminate disparities among all children in access to justice, especially vulnerable children and children with psychosocial and/or physical disabilities.[30]

5. Fundamental freedoms

31. UNESCO stated that defamation was a criminal offence in Eswatini, under the Sedition and Subversive Activities Act, 1938. In 2017, a revision of the Public Order Act had criminalized public criticism of the King or the Government, punishable by a fine or up to two years of imprisonment.[31]

32. UNESCO recommended that Eswatini decriminalize defamation and place it within civil defamation legislation that was in accordance with international standards.[32]

33. The United Nations country team recommended that Eswatini safeguard the freedoms of expression, association and assembly and protect human rights defenders and journalists from harassment and violence.[33]

34. The United Nations country team stated that the Sedition and Subversive Activities Act, 1938, the Suppression of Terrorism Act, 2008, and the Public Order Act, 2017, restricted debate and dissent through broad discretionary powers and criminal sanctions. Civil society had warned that the proposed Non-Profit Organizations Bill would further shrink civic space by granting extensive executive control and limiting advocacy that was critical of government policies.[34]

35. The United Nations country team recommended that Eswatini review, repeal or amend legislation that unduly restricted freedom of opinion and expression.[35]

36. The United Nations country team recommended that Eswatini ensure that any legislation regulating civil society organizations fully respected the rights to freedom of expression, association and peaceful assembly.[36]

37. The United Nations country team recommended that Eswatini ensure the protection of journalists, media workers, human rights defenders, political activists and civil society actors from intimidation, harassment, surveillance, arbitrary arrest and violence.[37]

38. The United Nations country team stated that the Public Order Act, 2017, and related regulations had been used to prevent, restrict or disperse peaceful protests and demonstrations, including those related to political, labour, social, economic and governance issues.[38]

39. The United Nations country team stated that participants in peaceful assemblies had been met with excessive force, arbitrary arrests, prolonged detention and serious injuries. There had been a lack of prompt, independent investigations into alleged violations, including of deaths and ill-treatment of protesters, which was fostering a climate of fear.[39]

40. The United Nations country team recommended that Eswatini ensure full respect for the constitutional right to peaceful assembly by reviewing and amending the Public Order Act, 2017, and related regulations to bring them into conformity with international human rights standards.[40]

41. The United Nations country team recommended that Eswatini conduct prompt, independent and impartial investigations into all alleged violations committed in the context of peaceful assemblies, including unlawful killings, injuries, arbitrary arrests and ill-treatment, and ensure access to justice and effective remedies for victims.[41]

6. Right to marriage and family life

42. The Committee on the Rights of the Child was concerned that a large number of children were living without appropriate family care and parental guidance, due to circumstances such as the HIV epidemic, migration for work and the remarriage of parents, and that the financial resources allocated to strengthening children's family environments were insufficient.[42]

7. Prohibition of all forms of slavery, including trafficking in persons

43. The ILO Committee of Experts strongly urged Eswatini to ensure that, both in law and in practice, persons who, without recourse to violence, expressed certain political views or views ideologically opposed to the established political, social or economic system were not subjected to compulsory labour as a result of a conviction to a penalty of imprisonment.[43]

44. The Committee on the Rights of the Child was seriously concerned about reports of high rates of child labour, particularly among girls in rural areas and in the age group of 5 to 11 years, the lack of data on the extent and type of work carried out by children, and the insufficient resources allocated to the Child Labour Unit.[44]

45. The ILO Committee of Experts, recalling that children orphaned by HIV/AIDS and other vulnerable children were at an increased risk of being engaged in the worst forms of child labour, requested Eswatini to strengthen its efforts to protect those children from the worst forms of child labour.[45]

46. The Committee on the Rights of the Child recommended that Eswatini effectively enforce the Employment Act, explicitly prohibit the employment of children in harmful or hazardous work and expedite the amendments to the Employment Act to include additional safeguards for children, in particular young girls in rural areas.[46]

47. The ILO Committee of Experts urged Eswatini to intensify its efforts to ensure the effective abolition of child labour by children under the minimum age for employment or work.[47]

48. The same Committee urged Eswatini to strengthen its measures to build the capacity of labour inspectors with a view to allowing them to better monitor and identify cases of child labour, particularly in the informal economy.[48]

49. The same Committee requested Eswatini to further strengthen the capacity of law enforcement bodies, including the police and prosecutors, to ensure the identification of cases of trafficking in children.[49]

8. Right to work and to just and favourable conditions of work

50. The United Nations Population Fund (UNFPA) stated that rapid urbanization, with an annual rate of 1.83%, was driving socioeconomic transformation, creating opportunities for employment and services while straining infrastructure, increasing informal settlements and intensifying youth unemployment.[50]

51. UNDP stated that unemployment remained critical at 34.4% in 2024, with youth unemployment at 48.7%, highlighting significant skills mismatches. Women faced higher unemployment rates and lower labour force participation, contributing to the prevalence of informal employment.[51]

52. The ILO Committee of Experts noted with deep concern the serious allegations from the International Trade Union Confederation and the International Transport Workers' Federation regarding the persecution and murders of trade unionists and the excessive violence against strikers that had increased in 2022 and 2023. Allegedly, more than 80 people were reported to have lost their lives because of police crackdowns on protests in which protestors had demanded democracy and wage increases.[52]

53. The ILO Conference Committee on the Application of Standards urged Eswatini to refrain from the violent treatment, intimidation or harassment, including judicial harassment, of leaders and members of trade unions in the education sector who were conducting lawful trade union activities. It also urged Eswatini to release, quash convictions and drop all charges brought against individuals for having exercised lawful trade union activities and ensure the safe return home of all trade unionists living in exile.[53]

54. The ILO Committee of Experts requested Eswatini to ensure sufficient material means for the effective discharge of the duties of the labour inspectorate, including transport facilities and personal protective equipment, as necessary.[54]

55. The same Committee requested Eswatini to take steps without further delay towards the adoption of the Employment Bill, ensuring that the Bill: (a) fully reflected the principle of equal remuneration for men and women for work of equal value enshrined in the Equal Remuneration Convention, 1951 (No. 100); and (b) provided for a definition of "work of equal value", allowing for the comparison not only of work that involved similar or substantially similar qualifications, skills, effort, responsibilities and conditions of work, but also of work of equal value overall.[55]

56. The same Committee encouraged Eswatini to take steps to promote equal employment opportunities and treatment in the public service, regardless of gender, marital status, race, colour, ethnic origin, tribe, birth, creed or religion, or social or economic standing, political opinion, age, disability or HIV and AIDS status.[56]

9. Right to social security

57. The United Nations country team stated that social protection coverage remained limited, with only 29% of the population covered and 44% protected against work-related injuries. Vulnerable groups lacked unemployment and sickness benefits, while maternity protection was minimal.[57]

58. The Committee on the Rights of the Child was concerned about the inadequacy of social assistance programmes. It recommended that Eswatini develop a social assistance and social protection strategy and a child-sensitive, equitable, efficient and fiscally sustainable social assistance system.[58]

10. Right to an adequate standard of living

59. UNDP stated that 58.9% of the population lived below the national poverty line and 20.1% were living in extreme poverty. Income disparities remained high.[59]

60. The Committee on the Rights of the Child was concerned about the high poverty rate among children, particularly in rural areas.[60]

61. The same Committee was concerned that many children lived in informal settlements without access to water or sanitation. It recommended that Eswatini improve children's access to water and sanitation, particularly in informal settlements.[61]

11. Right to health

62. The same Committee remained concerned about the scarcity of healthcare facilities, particularly in rural areas, and at the stock-outs of certain medicines.[62]

63. The same Committee recommended that Eswatini improve access to, and the quality of, primary health services, particularly in rural areas, by allocating sufficient human and financial resources for health infrastructure, and by developing an integrated medicine supply management system to improve the availability of and access to medicines.[63]

64. The same Committee recommended that Eswatini urgently strengthen its efforts to further reduce infant and child mortality, especially by improving antenatal and postnatal care, enhancing the capacity of healthcare providers, and increasing the availability and accessibility of emergency obstetric care and skilled birth attendants in rural areas and support for proper nutritional intake.[64]

65. UNFPA stated that maternal mortality remained high. Delays in receiving timely, appropriate treatment, gaps in care quality, inefficient midwife deployment, limited emergency obstetric skills and frequent stock-outs of essential medicines continued to drive maternal deaths. Addressing those issues, strengthening health systems, improving emergency obstetric care and ensuring the availability of essential medicines and equipment were urgent priorities to accelerate progress toward maternal health targets.[65]

66. The Committee on the Rights of the Child was concerned that health services were generally not adolescent friendly. It was also concerned about the high rate of early pregnancy and adolescents' limited access to contraceptives, particularly in rural areas.[66]

67. The same Committee recommended that Eswatini ensure that all adolescents had access to confidential mental health services and counselling in primary healthcare settings, schools and communities.[67]

68. UNFPA stated that ongoing barriers that young people faced in accessing quality sexual and reproductive health and rights information and services included disruptions in family planning commodities, limited contraceptive options for young people, gaps in life skills education and the inaccessibility of health facilities. Those issues underscored the urgent need for targeted interventions to improve access to family planning and comprehensive sexual and reproductive health and rights services for young people.[68]

69. The Committee on the Rights of the Child recommended that Eswatini ensure that comprehensive sexual and reproductive health education was part of the compulsory school curriculum, with special attention placed on the prevention of early pregnancy and sexually transmitted infection, in particular HIV/AIDS, and ensure access to confidential counselling.[69]

12. Right to education

70. UNESCO stated that the Free Primary Education Act, 2010 (art. 3 (1)), and the Children's Protection and Welfare Act, 2012 (art. 9 (1)), did not comprehensively guarantee the right to education, as it was limited to Swazi children and to primary education.[70]

71. UNESCO recommended that Eswatini guarantee in national legislation at least 9 years of compulsory primary and secondary education and at least 12 years of free primary and secondary education.[71]

72. The ILO Committee of Experts urged Eswatini to make education compulsory up until the minimum age for admission to employment, which was 15.[72]

73. The Committee on the Rights of the Child remained concerned about the quality of education outcomes being inadequate at all levels, the large number of unqualified teachers and the in-service training department being understaffed and underresourced.[73]

74. The same Committee remained concerned about high dropout rates, with significant urban and rural differences, and about low enrolment rates in secondary education.[74]

75. The same Committee remained concerned about the hidden costs related to education, in particular top-up fees, and uniform and transport costs, and the fact that grants to orphaned and vulnerable children were insufficient to cover all costs.[75]

76. The same Committee recommended that Eswatini increase enrolment and reduce dropout in secondary education by addressing obstacles such as repetition rates, early pregnancy, distance from secondary school and poor infrastructure quality.[76]

77. UNESCO recommended that Eswatini legally proscribe corporal punishment in education settings.[77]

13. Development, the environment, and business and human rights

78. The Committee on the Rights of the Child was concerned about the industrial pollution that threatened access to safe drinking water from rivers, and urban waste and agricultural chemicals that posed a serious risk both to the environment and children's health.[78]

B. Rights of specific persons or groups

1. Women

79. The United Nations country team stated that customary law entrenched gender inequality in inheritance and property rights.[79]

80. The United Nations country team stated that Eswatini had made progress in addressing gender-based violence through legislative reforms such as the Sexual Offences and Domestic Violence Act, 2018. However, high rates of gender-based violence persisted due to weak enforcement, cultural barriers and limited funding to provide relevant support to survivors of such violence, such as shelters and safe houses, helplines, critical centres, medical care, psychosocial counselling and trauma support, legal aid and access to justice.[80]

81. UNFPA stated that gender-based violence and harmful practices remained pervasive in Eswatini due to entrenched social, economic and political inequalities. Patriarchal norms, slow law enforcement and an underdeveloped justice system exacerbated those issues. The lack of a functional gender-based violence management information system and limited male engagement in promoting positive masculinity further hindered progress. As a result, women and girls faced elevated risks of gender-based violence, unintended pregnancies, sexually transmitted infections and HIV.[81]

82. The United Nations country team recommended that Eswatini strengthen its efforts to raise the awareness of the wider public to the adverse impact of sexual and gender-based violence and encourage reporting, inter alia by systematically informing women and children of their rights and of the existing legal avenues through which they could receive protection.[82]

83. The United Nations country team recommended that Eswatini allocate adequate funding to provide relevant support to survivors of gender-based violence, such as shelters and safe houses, helplines, critical centres, medical care, psychosocial counselling and trauma support, legal aid and access to justice.[83]

84. The United Nations country team recommended that Eswatini review domestic laws, including customary laws, on the status of women and repeal or amend all provisions relating to marriage, inheritance, property rights and transfer of citizenship that were not in accordance with the Constitution.[84]

2. Children

85. The United Nations country team stated that, despite free services, 34% of children under 5 remained unregistered, limiting their access to education, healthcare and legal protection. That highlighted the urgent need for universal civil registration.[85]

86. The United Nations country team recommended that the Government of Eswatini ensure that all children were registered at birth, including through the mandatory integration of birth registration services in health facility investment in digital civil registration systems.[86]

87. The Committee on the Rights of the Child remained seriously concerned at the high prevalence of sexual exploitation and abuse of children and that few cases were reported, even though the perpetrators were often known to the victims.[87]

88. The same Committee urged Eswatini to establish mechanisms, procedures and guidelines to ensure mandatory reporting of cases of child sexual abuse and exploitation, and measures to follow up on each case in terms of both psychosocial and judicial interventions.[88]

89. The same Committee urged Eswatini to revise its legislation, including by amending the Marriage Act and adopting the marriage bill, in order to ensure that the minimum age of marriage was established at 18 for both girls and boys.[89]

90. The same Committee urged Eswatini to take effective measures to fully eliminate child marriage and to raise awareness of its harmful effects on physical and mental health and well-being, especially that of girls, targeting households, local authorities, traditional and religious leaders and judges and prosecutors.[90]

91. The same Committee remained seriously concerned that there was no multisectoral approach to prevent and respond to violence against children and no integrated child protection system. It urged Eswatini to establish an efficient multisectoral child protection system, strengthen community and school-based protection systems, promptly operationalize a toll-free, 24-hour national helpline that was available for all children and provide the human, financial and technical resources necessary for its effective functioning.[91]

92. The same Committee urged Eswatini to strengthen the system of registration for, effective monitoring of and oversight over alternative care institutions, including alternative care centres and placements administered by private actors.[92]

93. The same Committee. while welcoming measures taken by Eswatini to increase the level of birth registration, remained concerned at the low rate of birth registration, the legal and administrative barriers and requirements for registering a child, the absence of registration offices, the inaccessibility of existing offices, in some areas, particularly in rural areas, the direct and indirect costs of registration services and the insufficient awareness among parents about how to register their children.[93]

94. The Office of the United Nations High Commissioner for Refugees (UNHCR) stated that traditional customs, such as the requirement for mothers to remain indoors for months following birth or the refusal to register children until “damages” were paid by the father, delayed or prevented essential birth registration.[94]

95. The Committee on the Rights of the Child urged Eswatini to address administrative barriers to birth registration, including by continuing its efforts to ensure a free, timely and simplified process and to establish a countrywide system of birth registration in health facilities and a system of e-registration.[95]

96. The same Committee urged Eswatini to increase public awareness about the importance and process of birth registration in communities, as well as incentives, including with the support of traditional authorities and religious leaders.[96]

3. Persons with disabilities

97. The United Nations country team stated that, despite the Persons with Disabilities Act, 2018, and the National Disability Plan of Action (2024–2028), accessibility gaps persisted in buildings, transport and information, including the need for election-specific accommodation and the provision of Braille/tactile ballots, accessible polling stations, sign-language/alternative formats and resourcing of the new Plan of Action.[97]

98. The United Nations country team stated that Eswatini was making efforts to enhance school infrastructure to improve accessibility and was embarking on the development of inclusive skills, although fully integrating students with disabilities into mainstream education remained a challenge. Children with disabilities faced major barriers to quality education due to inadequate infrastructure, assistive devices and teacher training. While the Government prioritized early identification and intervention, inclusive education access remained limited.[98]

99. The United Nations country team recommended that Eswatini take measures to enhance access to inclusive education, particularly for children with disabilities, including by enforcing policies that guaranteed accessibility in schools, including the provision of accessible physical infrastructure, learning materials in accessible formats, assistive technologies, and by training teachers.[99]

100. The Committee on the Rights of the Child urged Eswatini to ensure that children with disabilities had access to healthcare, inclusive education, early detection and early intervention systems, and various forms of social protection of high quality supported with adequate human, technical and financial resources.[100]

101. The same Committee urged Eswatini to intensify efforts to end the isolation, stigmatization, abuse and ill-treatment of children with disabilities.[101]

4. Lesbian, gay, bisexual, transgender and intersex persons

102. The United Nations country team stated that, despite constitutional guarantees of equality, the justice system lacked explicit anti-discrimination protections on the basis of sexual orientation and gender identity, while colonial-era sodomy laws and punitive provisions relating to sex work and drug use perpetuated fear of arrest and discouraged reporting of rights violations.[102]

103. The United Nations country team stated that LGBTQI+ persons faced systemic barriers to justice, with discriminatory laws, lack of protections and stigmatizing attitudes discouraging the reporting of violations.[103]

104. The United Nations country team recommended that Eswatini review and repeal laws that criminalized consensual same-sex relations and take all legislative measures necessary to prevent discrimination based on sexual orientation and gender identity.[104]

5. Migrants, refugees and asylum-seekers

105. UNHCR stated that the Ministry of Home Affairs oversaw the refugee programme and ran the Malindza Refugee Reception Centre, which was the initial reception centre for asylum-seekers and refugees upon their arrival. Due to limited opportunities elsewhere, many asylum-seekers and refugees remained in the settlement for years. The Centre, which had capacity for 250 persons, was currently hosting 1,864 individuals, which had resulted in serious water, sanitation and hygiene concerns.[105]

106. The Committee on the Rights of the Child was concerned about access to various services, particularly education, by asylum-seeking, refugee and migrant children at the Malindza Refugee Reception Centre.[106]

107. UNHCR stated that there was no provision in legislation for legal representation during the asylum process, with the exception being in matters of “expulsion”.[107]

108. UNHCR stated that, while primary education was free for nationals, tuition fees were required for refugee and asylum-seeking children to be enrolled. It recommended that Eswatini provide free primary education to all children, including refugees and asylum-seekers.[108]

109. The United Nations country team recommended that Eswatini take the measures necessary to operationalize the process for asylum-seekers to be able to appeal to the National Refugee Appeals Board.[109]

6. Stateless persons

110. UNHCR commended Eswatini for passing the National Civil Registration and Vital Statistics Act in 2023 and bringing it into force in 2024. That represented a milestone in reducing statelessness.[110]

111. The United Nations country team recommended that Eswatini amend section 43 of the Constitution on citizenship by birth and the Citizenship Act, 1992, to remove gender-discriminatory provisions, ensuring that Swazi women could transfer nationality to their children and foreign spouses on an equal basis with men.[111]

112. The United Nations country team recommended that Eswatini incorporate provisions into the Citizenship Act, 1992, to grant nationality to children born in the territory who would otherwise be stateless and that it remove the age limit in the Constitution pertaining to foundlings.[112]

113. The United Nations country team recommended that Eswatini ensure universal birth registration by removing fees and administrative barriers for late registration, particularly for children born to refugee or undocumented parents in rural areas.[113]

Notes

[1] A/HRC/49/14, A/HRC/49/14/Add.1 and A/HRC/49/2.
[2] CRC/C/SWZ/CO/2-4, paras. 72 and 73. See also United Nations country team submission for the universal periodic review of Eswatini, paras. 3–5.
[3] UNESCO submission for the universal periodic review of Eswatini, para. 34 (vi).
[4] ILO submission for the universal periodic review of Eswatini, p. 1.
[5] Ibid., p. 2.
[6] United Nations country team submission, p. 7.
[7] Ibid., p. 3.
[8] DP/DCP/SWZ/5, para. 1.
[9] CRC/C/SWZ/CO/2-4, para. 12 (a).
[10] Ibid., para. 17 (b).
[11] United Nations country team submission, para. 9.
[12] CRC/C/SWZ/CO/2-4, para. 26 (b).
[13] Ibid., para. 43 (c) and (d).
[14] Ibid., para. 71 (a).
[15] Ibid., para. 70 (a).
[16] Ibid., para. 71 (b).
[17] Ibid., para. 36.
[18] United Nations country team submission, para. 33.
[19] Ibid., para. 34.
[20] Ibid., para. 35.
[21] Ibid., p. 9.
[22] Ibid.
[23] See https://www.ohchr.org/en/press-releases/2023/01/turk-condemns-killing-eswatini-human-rights-lawyer-urges-accountability.
[24] United Nations country team submission, para. 25.
[25] See https://www.ohchr.org/en/press-releases/2024/01/eswatini-un-experts-commemorate-human-rights-defender-thulani-maseko-deplore.
[26] See https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000:13100:0::NO:13100:P13100_COMMENT_ID,P13100_COUNTRY_ID:4418266,103336:NO.
[27] United Nations country team submission, para. 6 and p. 3.
[28] Ibid., para. 27.
[29] CRC/C/SWZ/CO/2-4, para. 71 (d).
[30] Ibid., para. 71 (h).
[31] UNESCO submission, para. 15.
[32] Ibid., para. 28.
[33] United Nations country team submission, p. 9.
[34] Ibid., para. 28.
[35] Ibid., p. 7.
[36] Ibid., p. 8.
[37] Ibid., p. 8.
[38] Ibid., para. 30.
[39] Ibid., para. 31.
[40] Ibid., p. 8.
[41] Ibid.
[42] CRC/C/SWZ/CO/2-4, para. 44.
[43] ILO submission, p. 3.
[44] CRC/C/SWZ/CO/2-4, para. 66.
[45] See https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000:13100:0::NO:13100:P13100_COMMENT_ID,P13100_COUNTRY_ID:4297063,103336:NO.
[46] CRC/C/SWZ/CO/2-4, para. 67 (a).
[47] ILO submission, p. 3.
[48] Ibid., p. 3.
[49] Ibid., p. 4.
[50] DP/FPA/CPD/SWZ/8, para. 8.
[51] DP/DCP/SWZ/5, para. 2.
[52] See https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000:13100:0::NO:13100:P13100_COMMENT_ID,P13100_COUNTRY_ID:4378535,103336:NO.
[53] ILO submission, pp. 2 and 3.
[54] Ibid., p. 5.
[55] Ibid., p. 4.

[56] See https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000:13100:0::NO:13100:P13100_COMMENT_ID,P13100_COUNTRY_ID:4354519,103336:NO.
[57] United Nations country team submission, para. 43.
[58] CRC/C/SWZ/CO/2-4, paras. 60 (a) and 61 (a).
[59] DP/DCP/SWZ/5, para. 1.
[60] CRC/C/SWZ/CO/2-4, para. 60 (b).
[61] Ibid., paras. 60 (c) and 61 (c).
[62] Ibid., para. 52 (a).
[63] Ibid., para. 53 (a).
[64] Ibid., para. 53 (b).
[65] DP/FPA/CPD/SWZ/8, para. 4.
[66] CRC/C/SWZ/CO/2-4, para. 54 (a) and (c).
[67] Ibid., para. 55 (d).
[68] DP/FPA/CPD/SWZ/8, para. 3.
[69] CRC/C/SWZ/CO/2-4, para. 55 (c).
[70] UNESCO submission, para. 3.
[71] Ibid., para. 27 (iii) and (iv).
[72] ILO submission, p. 3.
[73] CRC/C/SWZ/CO/2-4, para. 62 (d) and (f).
[74] Ibid., para. 62 (a) and (c).
[75] Ibid., para. 62 (g).
[76] Ibid., para. 63 (b).
[77] UNESCO submission, para. 27 (vii).
[78] CRC/C/SWZ/CO/2-4, para. 58 (a).
[79] United Nations country team submission, para. 9.
[80] Ibid., paras. 11 and 14.
[81] DP/FPA/CPD/SWZ/8, para. 5.
[82] United Nations country team submission, p. 5.
[83] Ibid., p. 5.
[84] Ibid., p. 4.
[85] Ibid., para. 17.
[86] Ibid., p. 5.
[87] CRC/C/SWZ/CO/2-4, para. 40 and 40 (a).
[88] Ibid., para. 41 (a).
[89] Ibid., para. 25. See also UNESCO submission, para. 27 (vi).
[90] CRC/C/SWZ/CO/2-4, para. 43 (a).
[91] Ibid., paras. 38 (d) and 39 (d) and (f).
[92] Ibid., para. 47 (d).
[93] Ibid., para. 32.
[94] UNHCR submission for the universal periodic review of Eswatini, p. 6.
[95] CRC/C/SWZ/CO/2-4, para. 33 (b).
[96] Ibid., para. 33 (c).
[97] United Nations country team submission, para. 10.
[98] Ibid., paras. 19 and 20.
[99] Ibid., p. 6.
[100] CRC/C/SWZ/CO/2-4, para. 51 (b).
[101] Ibid., para. 51 (c).
[102] United Nations country team submission, para. 27.
[103] Ibid., para. 27.
[104] Ibid., p. 4.
[105] UNHCR submission, p. 1.
[106] CRC/C/SWZ/CO/2-4, para. 64.
[107] UNHCR submission, p. 3.
[108] Ibid., p. 4.
[109] United Nations country team submission, p. 6.
[110] UNHCR submission, p. 2.
[111] United Nations country team submission, p. 6. See also UNHCR submission, p. 6.
[112] United Nations country team submission, p. 6. See also UNHCR submission, p. 6.
[113] United Nations country team submission, p. 6. See also UNHCR submission, p. 6.